

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

RACHEL HIATT,

Petitioner

VS.

ROBERT SPEIGHT,

Respondent

) Case Number: FDI-24-799715

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ENFORCEMENT OF STIPULATED JUDGMENT (8/15/25, SECTION 3.2)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Rachel Hiatt (Wife) and Respondent Robert Speight (Husband) married on 5/8/2014 and separated on 4/26/2024, for a marriage of 9 years and 11 months. The parties have no minor children. Both parties are self-represented.
- 2) On 10/29/2025, a Stipulated Judgment was entered in this matter resolving all issues, which provides in relevant part:
 - a. Section 2.2: "To equalize the division of community property assets and obligations as set forth in this Judgment, Wife is Ordered to pay Husband the sum of One Hundred Five Thousand Dollars (\$105,000) via QDRO from her CalPERS 457(b) retirement account. This payment is found by the Court to be a tax-free interspousal transfer related to the cessation of marriage to effect a division of marital property under Internal Revenue Service 1041 and comparable provisions of state law."

b. Section 3.2.1: “It is intended that the total equalization payment of One Hundred Five Thousand Dollars (\$105,000) be distributed in cash directly to Husband pursuant to the QDRO and shall be payable as a lump-sum monetary distribution from Wife’s CalPERS 457(b) account. This amount is a fixed obligation, not contingent upon market conditions, plan valuation, or percentage interest. Husband shall receive the full \$105,000 free and clear of any tax liability, penalty, or encumbrance, and Wife shall indemnify and hold Husband harmless from any [and] all taxes, costs, and penalties associated with this transfer, consistent with Internal Revenue Code Section 1041 and applicable state law. Should any taxes, penalties, or other encumbrance reduce Husband’s initial net receipt, Wife shall reimburse to Husband the exact amount of the reduction. Both parties will work together to effectuate the intention of this agreement, which is for Husband to net \$105,000.”

3) On 11/17/2025, a Qualified Domestic Relations Order was entered requiring the CalPERS 457 Plan to distribute \$105,000 to Husband as a “single lump-sum cash payment.”

4) Now on for hearing is Husband’s Request for Order filed 4/17/2026. Husband states that on 3/26/2026, he received a distribution from the CalPERS 457 plan of \$71,073.38. Husband states that \$30,460.02 was withheld for federal taxes. Husband states he reached out to Wife multiple times to request that she reimburse him the \$30,460.02 that was withheld. Wife first stated she could liquidate \$10,000 within 7 to 10 days but then stated she could only afford to pay \$500 per month towards this sum. Husband states that payment of \$500 per month would take over five years to satisfy the obligation, excluding interest, and does not constitute reasonable compliance with a court-ordered indemnification obligation. Husband attached a printout from the Transparent California website which appears to show that Wife earned \$221,655 in income in 2024 as the Deputy Director for Planning of the San Francisco County Transportation Authority. Husband asks the Court to:

- a. Order Wife to pay Husband \$30,460.02 within 10 calendar days of the Court’s order;
- b. Award Husband statutory interest on this amount at the rate of 10% per annum commencing 3/26/2026;

- 1 c. Award Husband \$1,200 in Family Code section 271 “reflecting the time and effort I have
2 expended as a result of Petitioner’s failure to comply with the judgment;”
- 3 d. Authorize enforcement remedies, including but not limited to earnings assignment and
4 other collection methods, and authorize Husband to proceed with enforcement without
5 further hearing if Wife fails to pay within the timeframe ordered by the Court.
- 6 5) Per the Proof of Electronic Service filed 4/13/2026, Husband’s Request for Order was emailed to
7 Wife on 4/11/2026.
- 8 6) The Court notes that, per the Findings and Orders filed 4/14/2025, the parties agreed to electronic
9 service.
- 10 7) Per the Findings and Order After Hearing filed 6/8/2026, the prior 5/28/2026 hearing was
11 continued to 8/4/2026 because there was no evidence in the record that Wife had been served
12 with a file-endorsed copy of Husband’s 4/17/2026 Request for Order, and therefore there was no
13 evidence in the record that Wife had received notice of the hearing date. Husband was ordered to
14 serve on Wife a blank Responsive Declaration, the Tentative Ruling Instructions, and the
15 Findings and Order After Hearing for the 5/28/2026 hearing date.
- 16 8) Per the Proof of Electronic Service filed 7/2/2026, the following pleadings were emailed to Wife:
17 Findings and Order After Hearing, Request for Order, Responsive Declaration, and Tentative
18 Ruling Instructions.
- 19 9) Per the Proof of Service filed 7/8/2026, those same pleadings were left at an address for Wife on
20 7/7/2026 between the hours of nine in the morning and five in the afternoon, in a conspicuous
21 place in the office “in accordance with C.C.P. 1011.”
- 22 10) Wife has filed no pleadings responding to Husband’s Request for Order filed 4/17/2026.

23 **B. Findings and Order**

- 24 1) The Court hereby grants Husband’s unopposed request.
- 25 2) No later than Friday, 8/28/2026 at 5:00 PM, Wife shall pay Husband \$30,460.02. Failure to make
26 payment by this date will result in statutory interest accruing at a rate of 10% per annum per Code
27 of Civil Procedure section 685.010.
- 28
- 29

- 1 3) Husband's request for attorney's fees sanctions in the amount of \$1,200 is denied without
2 prejudice as Husband has not presented evidence that he actually incurred attorney's fees to
3 pursue his 4/17/2026 Request for Order.
- 4 4) If Wife does not comply with this order, Husband may pursue enforcement remedies. Whether or
5 not further hearing is needed depends upon the nature of Husband's request.
- 6 5) The Court will prepare the Findings and Order After Hearing.